

25STCV07942 25STCV07942

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-24

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Case Number: 25STCV07942 Hearing Date: August 24, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Giancarlo Ricci

;

Plaintiff,

vs.

General Motors, LLC

;

Defendants.

Case No.:

25STCV07942

Hearing Date:

August 24, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
for Terminating, Issue, or Evidence Sanctions

MOVING PARTY: Defendant General Motors, LLC

RESPONDING
PARTY: Plaintiff
Giancarlo Ricci

Motion for
Terminating, Issue, or Evidence Sanctions

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

DISCUSSION

Defendant General
Motors, LLC ("Defendant") moves the court for an order granting terminating
sanctions or, in the alternative, issue and evidentiary sanctions against
plaintiff Giancarlo Ricci ("Plaintiff"), and for monetary sanctions for
Defendant and against Plaintiff and his counsel in the amount of \$1,500.00.

If a party
engages in a misuse of the discovery process, the court may impose monetary,
issue, evidence, or terminating sanctions. (Code Civ. Proc., § 2023.030.) "Misuses of the discovery process
include, but are not limited to, the following: (d) Failing to respond or to
submit to an authorized method of discovery. (g) Disobeying a court order
to provide discovery." (Code Civ. Proc., § 2023.010, subs. (d), (g).) "When exercising its discretion
to determine which form of sanction is most appropriate for a discovery
violation, a trial court should consider various factors, including 'the
importance of the materials that were not produced—from the perspective of the

offended party's ability to litigate the case—and what prejudice, if any, the offended party suffered....”

(Victor Valley Union High School District v. Superior Court of San Bernardino County (2023) 91 Cal.App.5th 1121, 1158.)

First, the court finds that Defendant has shown that Plaintiff has violated a court order to provide discovery.

On May 7, 2026, the court issued an order that granted Defendant's motion to compel deposition and required Plaintiff to sit for deposition within ten days of that hearing and awarded monetary sanctions to Defendant and against Plaintiff. (May 7, 2026 Minute Order.) Plaintiff never sat for that deposition. (Lasater Decl. ¶ 6.) Moreover, Plaintiff's own counsel states that Plaintiff has ceased communicating with counsel. (Smith Decl. ¶¶ 9-12.)

Second, the court finds that Plaintiff's failure to sit for deposition is prejudicial because a deposition of a plaintiff is a basic element of discovery in a Song-Beverly Action. (Code Civ. Proc., § 871.26, subd. (c)(1).)

Finally, the court has considered that it has already imposed the less severe sanction of monetary sanctions against Plaintiff, which has not produced Plaintiff's compliance with the discovery rules or the court's order. (Victor Valley Union High School District, *supra*, 91 Cal.App.5th at p. 1158; May 7, 2026 Minute Order.)

Based on the evidence presented, and in light of the fact that Defendant did not file opposition papers disputing their conduct or showing their belated compliance, the court finds that (1) Plaintiff has engaged in conduct that is a misuse of the discovery process (i) by failing to respond or submit to an authorized method of discovery, and (ii) by disobeying a court order to provide discovery, (2) Defendant has been prejudiced by Plaintiff's misconduct, and (3) the evidence shows that the less severe sanction of monetary sanctions has not produced compliance with the discovery rules. (Code Civ. Proc., § 2023.010, subds. (d), (g).)

The court
therefore finds that it is appropriate, and exercises its discretion, to impose
terminating sanctions against Plaintiff. (Code Civ. Proc., § 2023.030,
subd. (d)(1).)

The court declines
to impose monetary sanctions under the Civil Discovery Act because it finds
that the circumstances presented would make the imposition of further monetary
sanctions unjust. (Code Civ. Proc., § 2023.030, subd. (a).) Defendant has
obtained terminating sanctions, and so additional monetary sanctions are
unnecessary.

The court also
declines to impose monetary sanctions under Civil Code section 871.26,
subdivision (j), because it finds that the failure of Plaintiff to sit for
deposition is due to the absence of Plaintiff himself, not any wrongdoing by
counsel. Thus, Plaintiff's attorney has shown good cause for counsel's failure
to comply with the statute—i.e., because the actions of the client are beyond
counsel's control. (Code Civ. Proc., § 871.26, subd. (j)(2) [sanctions to be
imposed against plaintiff's attorney for non-compliance unless party failing to
comply demonstrates good cause].)

ORDER

The court GRANTS
defendant General Motors, LLC's motion for terminating sanctions.

The court orders
that the First Amended Complaint filed December 12, 2023 by Giancarlo Ricci
against General Motors, LLC is dismissed with prejudice.

All future
hearings are advanced to this date and vacated.

The court orders defendant
General Motors, LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 24, 2026

Robert B. Broadbelt III

Judge of the Superior Court